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|   |                                                                                                              | <p><b>Application:</b></p> <p>Defendant contends Plaintiff's complaint does not meet the high standard for pleading punitive damages because there is no showing Defendant "intended to injure Plaintiff." (Motion, 5:9.) "At most, the Complaint alleges that Defendant Maria Di Paolo had prior notice of a risk and failed to take sufficient measures to restrain, supervise, confine, or control the dog. Those allegations may be relevant to negligence. They are not enough to transform an alleged failure to control a dog into conduct punishable by exemplary damages." (Id. at 5:14-17.)</p> <p>Plaintiff responds that Defendant's specific knowledge of the dog's dangerous propensity to attack others is sufficient to demonstrate malice based on a theory of conscious disregard for the safety of others. (Opp., p. 1.)</p> <p>At the pleading stage, Plaintiff has adequately alleged facts, including a recent prior attack by Defendant's dog and failure to take remedial action thereafter, which could show that "defendant was aware of the probable dangerous consequences of [her] conduct, and that [she] willfully and deliberately failed to avoid those consequences." (<i>Taylor v. Superior Court, supra</i>, 24 Cal.3d at 895-896.) Therefore, the motion is denied.</p> |
| 4 | <p><b>Ally Bank v. Soto</b></p> <p>2026-01545141</p> <p>Application for Writ of Possession After Hearing</p> | <p>Plaintiff has filed an application for writ of possession under Code of Civil Procedure section 512.010 et seq., which allows Defendant to post a deposit and obtain wrongfully-detained property prior to trial if Plaintiff demonstrates the probable validity of their claim.</p> <p>However, Plaintiff has not filed a proof of service of either the Complaint or the present Application. Although such relief may be granted ex parte in specific cases where the property was feloniously taken or the property is a credit card (Code Civ. Proc. § 512.020(b), it generally requires service on the Defendant of the summons/complaint, notice of application/hearing, and a copy of the application and supporting affidavit. (Code Civ. Proc. § 512.030.) Here, Plaintiff hasn't filed a proof of service of any documents in this case on Defendant. Therefore, the application should be denied without prejudice.</p> <p>Plaintiff Ally Bank's Application for Writ of Possession is DENIED without prejudice.</p>                                                                                                                                                                                                                                                                          |
| 5 | <p><b>James v. Thatcher</b></p> <p><b>2025-01457604</b></p>                                                  | <p>The motion of attorney Ashkahn Mohamadi be relieved as for plaintiff Presley James is GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |

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|   | <p>Motion to Be Relieved as Counsel</p> <p>OSC re Settled Case</p>                                                                              | <p>counsel of record for client effective upon filing of a proof of service of the signed order on client.</p> <p>Moving attorney to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 7 | <p><b>Law Offices of Mark B. Plummer PC v. Norred</b></p> <p><b>2025-01502837</b></p> <p>Motion to Disqualify Attorney of Record</p> <p>CMC</p> | <p>Defendant Mark W. Norred, CPA's motion to disqualify Mark Plummer, Law Offices of Mark B. Plummer, PC from representing plaintiffs Law Offices of Mark B. Plummer, Mark Plummer and Jocelyn Plummer is DENIED.</p> <p>"A trial court's authority to disqualify an attorney derives from its inherent power, codified at Code Civ. Proc. § 128, subdivision (a)(5), to control the conduct of its ministerial officers and of all other persons connected with its proceedings in furtherance of justice." (<i>Doe v. Yim</i> (2020) 55 Cal.App.5th 573, 581.)</p> <p>"Standing generally requires that the plaintiff be able to allege injury, that is, an invasion of a legally protected interest." (<i>Great Lakes Constr., Inc. v. Burman</i> (2010) 186 Cal.App.4th 1347, 1356.) "Generally, before the disqualification of an attorney is proper, the complaining party must have or must have had an attorney-client relationship with that attorney [to demonstrate standing]." (<i>Id.</i>) Even without an attorney-client relationship, the movant must still show that "some sort of confidential or fiduciary relationship must exist or have existed before a party may disqualify an attorney predicated on the actual or potential disclosure of confidential information." (<i>Id.</i>)</p> <p>"In evaluating alleged conflicts, a court first looks to whether the challenged representation is concurrent or successive." (<i>Walker v. Apple, Inc.</i> (2016) 4 Cal.App.5th 1098, 1106.) The First Amended Complaint alleges that defendant, Mark W. Norred, CPA, is an accountant who provided Plaintiffs with tax return preparation and representation in responding to an audit of the tax returns that Norred had prepared. (FAC, ¶ 3.) Plaintiffs allege that Norred, negligently represented Plaintiffs in the 2017, 2018 and 2019 tax year audits. (FAC, ¶ 6.)</p> <p>Norred seeks to disqualify Law Offices of Mark B. Plummer, PC and Mark Plummer (collectively, "Plummer") from representing Plaintiffs on the grounds Plummer represented him individually and as an officer and majority owner of Drake Traffic Control Services, Inc. dba as Mallard Construction Inc. (Norred Decl., ¶ 2.)</p> <p>Norred contends Plummer represented him in the following five cases. (1) Mark Norred &amp; Drake Traffic Control Services, Inc. v. Samuel Mullen, Case No. 30-2021-01204687. (Norred Decl., Ex. 4); (2) Paveco Construction v. LA Department of Water &amp; Power, Case No. 24STCP04154 (Norred Decl., Ex.</p> |